

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present:

Mr. Justice Md. Kamrul Hosssain Mollah

Criminal Appeal No.3088 of 2018

Md. Azizur Rahman

.....convict-Appellant

-Versus-

Midas Financing Ltd, represented by Md.
Monwar Hossain and state

..... Respondents

No one appears

.....For the convict-Appellant

Mrs. Aleya Khandker, A.A.G and

Mrs. Umme Masumun Nesa, A.A.G

.....For the State

Mr. Tanzim Al Islam, Advocate

.....For the complainant-respondent

No.1.

Heard on & Judgment on: 09.08.2023.

Md. Kamrul Hossain Mollah.J:

This appeal has been preferred against the judgment and order of conviction and sentence dated 17.01.2018 passed by the learned Metropolitan Joint Sessions Judge, 5th Court, Dhaka in Metro: Sessions Case No.13690 of 2015 arising out of C.R. Case No. 855 of 2015 convicting the appellant under section 138 of the Negotiable Instrument Act and sentencing him to suffer imprisonment for 06 (six) months and to pay a fine of Tk.8,54,024/-.

The prosecution case, in short is that in course of business convict-appellant took money from the complainant financial institution and failed to repay the same and ultimately indebted to the tune of Tk. 8,54,024/-. On 12.07.2015 the appellant issued cheque for an amount of Tk. 8,54,024/-. The complainant presented the cheque for encashment but the same was dishonored on 14.07.2015 for insufficient of fund. A legal notice was sent on 02.08.2015 requesting appellant to pay the due but the said legal notice returned un-served. The convict appellant thus committed an offence under section 138 of the Negotiable Instrument Act 1881 by giving the said cheque to the complainant-respondent No.1 and thus the present criminal case had been started against the convict appellant.

The learned Magistrate recorded the statement of complainant under section 200 of the Code of Criminal Procedure and took cognizance against the accused-convict-appellant under section 138 of the Negotiable Instruments Act, 1881.

Subsequently, the instant case was transferred to the learned Metropolitan Sessions Judge, Dhaka for trial and thereafter, the case was transmitted to the Court of learned Metropolitan Joint Sessions Judge, 5th Court, Dhaka. Thereafter, the learned trial Court on 29.03.2016 framed charge against the convict appellant under section 138 of the Negotiable Instrument Act, 1881. As the accused-convict-appellant was absconding, it was not possible to read out the charge and explain it to him.

The prosecution has examined only 01(one) witness in the trial Court to prove the case and defence examined none and the convict appellant had also not been examined under section 342 of Code of Criminal Procedure as he was absconding.

After considering all the evidence on record and deposition of the witness the learned Metropolitan Joint Sessions Judge, 5th Court, Dhaka passed the judgment and order of conviction and sentence on 17.01.2018, convicting the appellant under section 138 of the Negotiable Instrument Act, 1881 and sentencing him to suffer imprisonment for

06(six) months with a fine of Tk. 8,54,024/- (eight lacs fifty four thousand and twenty four).

Thereafter, on 18.02.2018, the convict-appellant deposited Tk. 4,27,012/- through chalan and surrendered before the trial Court on 18.02.2018 and the learned Judge enlarged him on bail for preferring appeal within one month.

Being aggrieved by and dissatisfied with the impugned judgment and order of conviction, the convict-appellant preferred this Appeal before this Court.

Despite the matter appears in the daily cause list for consecutive date, no one feels to appear on behalf of the convict-appellant to press the appeal.

On the other hand, Mr. Tanzim Al Islam, the learned Advocate appearing on behalf of the complainant-respondent No.1 submits that the convict-appellant took money from the complainant financial institution in course of business and failed to repay the same and ultimately indebted to the tune of Tk. 8,54,024/-. On 12.07.2015, the appellant issued cheque for an amount of Tk. 8,54,024/-. The complainant presented the cheque for encashment but the same was

dishonored on 14.07.2015 for insufficient of fund. A legal notice was sent on 02.08.2015 requesting appellant to pay the due but the said legal notice returned un-served and the accused failed to repay the cheque amount within the stipulated period. The convict-appellant thus committed an offence under section 138 of the Negotiable Instrument Act, 1881 by giving the said cheque to the respondent No.1.

He also submits that the prosecution rightly proved the charge brought against the convict-appellant complying with all formalities as required under Section 138 of the Negotiable Instruments Act, 1881 and as such the trial Court found the accused-petitioner guilty and thereby sentenced him which warrants no interference by this Court. He lastly prays for dismissing the Appeal.

In order to appreciate the submission of the learned Advocate on behalf of the complainant-respondent No.1, this Court is to weigh the relevant evidence and materials on record and scan the attending evidence of the case to unearth the actual facts of the case to arrive at a proper and correct decision.

Now, let us discuss the evidence of prosecution witness.

P.W.1 Md. Monwar Hossain, complainant of the case deposed that at the time of giving evidence he was the recovery officer of Midas Financing Ltd. and representative of the same organization in this case. The accused Md. Azizur Rahman gave a cheque for an amount of Tk. 8,54,024/-(eight lacs fifty four thousand and twenty four) of Islami Bank Bangladesh Ltd dated 12.07.2015. The cheque was dishonored due to insufficient funds on 14.07.2015. Thereafter, he sent a legal notice to the accused by registered post on 02.08.2015. But the said legal notice was returned unserved. Still, the accused-appellant did not pay the cheque amount as he filed this case on behalf of the company on 17.09.2015. He proved the power of attorney as Exhibit-1, complaint cheque as Exhibit-2, dishonor slip as Exhibit-2/1, legal notice and postal receipt as Exhibit-3 series, complaint petition as Exhibit-4 and his signature therein as Exhibit-4/1 respectively.

Considering the lower Court record, evidence and above facts and circumstances, it appears that complainant's complaint is Exhibit-4. The content described in it has been expressed by the complainant very coherently in his statement in the trial Court and the statement of PW-1 was not challenged as the prosecution witness was prevented from being cross-examined since the accused was absconding and there was no inconsistency on the fundamentals. The complainant's Exhibit-2 is the complaint cheque dated 12.07.2015. On perusal of the said Exhibit-2 shows that it is a cheque of Islami Bank Bangladesh Limited. There were the account number and Messer's Samia Metal was printed on the cheque. The said cheque bears the signature of the accused as Proprietor. It is a cheque of Tk. 8,54,024/- in which date 12.07.2015 is written. It is issued as an account payee cheque in the name of the payee. The Cheque has no rubbing and is a clean cheque. Where there is a clear stamp of the accused's designation. The complainant's Exhibits-2/1 is the dishonor slip dated 14.07.2015. The said dishonor slip states that it has been dishonored due to insufficient funds. The complainant's

Exhibits-3 series were perused. The legal notice marked as Exhibit-3 was served on the accused on 02.08.2016 in registry envelope with AD. The name and address of the accused are correctly written in the envelope and those were also been stated in the complaint petition.

In the light of the above discussion, it is clear before me that the accused-appellant issued a cheque amounting Tk.8,54,024/- and for encashment of the said cheque the complainant presented it to his bank account for encashment within the prescribed time limit (within six months) prescribed in the Act. But due to insufficient funds, the said cheque has been dishonored. Thereafter, the complainant has filed his complaint by duly fulfilling all the conditions of Section 138/141 of the Negotiable Instruments Act, 1881. The learned cognizance Court duly reviewed the plaint application and the documents on record and accepted the sworn statement of the complainant and took cognizance the offense under Section 138 of the Negotiable Instruments Act, 1881 against the accused.

Therefore, the learned Metropolitan Joint Sessions Judge, 5th Court, Dhaka passed the judgment and order of conviction and sentence dated 17.01.2018 in Metro: Sessions Case No.13690 of 2015 corresponding to C.R. No.855 of 2015 convicting the accused-appellant under section 138 of the Negotiable Instruments Act, 1881 and sentencing him to suffer imprisonment for 06(six) months and also to pay a fine of Tk.8,54,024/-, (eight lacs fifty four thousand twenty four) rightly which is maintainable in the eye of law.

Accordingly, I do not find any cogent and legal ground to interfere with the impugned judgment and order of conviction and sentence. The appeal, therefore, has no merit.

Moreover, it is found from the records that the convict-appellant preferred this appeal before this Court against the judgment and order of conviction and sentence dated 17.01.2018 passed by the learned Metro: Joint Sessions Judge, 5th Court, Dhaka. But, in accordance with law, the appeal should have been filed before the learned Sessions Judge against the said judgment and order of conviction and sentence dated 17.01.2018 instead of filing the appeal before

this Court. Therefore, this appeal is not maintainable in the eye of law.

In the result, the Criminal Appeal No.3088 of 2018 is hereby dismissed. The judgment and order of conviction and sentence dated 17.01.2018 passed by the learned Metropolitan Joint Sessions Judge, 5th Court, Dhaka in Metro: Sessions Case No.13690 of 2015 corresponding to C.R. No.855 of 2015 is hereby upheld and confirmed.

The concerned lower Court is hereby directed to take necessary steps to give the deposited 4,27,012/- of the fine amount to the complainant-respondent No.1 (if he did not take the said amount).

The convict-appellant is hereby directed to surrender before the concerned Court below (if he is on bail) within 15(fifteen) days from the date of the receipt of the judgment and order, failing which the concerned Court below will take necessary steps to secure his arrest.

The order of bail granted earlier by this Court is hereby recalled and vacated.

Send down the lower Court records and communicate a copy of the judgment and order to the concerned Court below at once.

Md. Mustafizur Rahman,
Bench Officer